

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

OAC Case No. PCE 2011-0002

Case No. 2012-000244

FINAL BOARD ORDER

IN THE MATTER OF THE DISCIPLINARY PROCEEDINGS REGARDING THE
PRACTICE OF PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
MEGHAN PATRICK-COBB, LPC, LICENSE NO. 3524

Respondent.

The State Board of Licensed Professional Counselor Examiners (the "Board"), pursuant to and after formal proceedings before a duly qualified Administrative Law Judge ("ALJ") in accordance with the provisions of Article 43, Title 12, of the Mental Health Practice Act, of the Colorado Revised Statutes ("Act") and the Administrative Procedures Act ("APA"), and having reviewed the ALJ's Initial Decision, hereby enters the following findings and order:

BACKGROUND

1. Respondent Meghan Patrick-Cobb ("Respondent") was licensed as a professional counselor on July 31, 2003 and was issued license number 3524.
2. On or about June 15, 2010, Respondent entered into a Stipulation and Final Agency Order with the Board ("the 2010 Stipulation").
3. The Board sent a letter dated December 1, 2010 to Respondent ("the December 2010 letter") notifying Respondent that the Board had not received the names of any proposed practice monitors from Respondent as required under the 2010 Stipulation.
4. The December 2010 letter also notified Respondent that, as of December 1, 2010, the 2010 stipulation was being held in abeyance, that Respondent must cease practice, and that Respondent could not practice without a practice monitor in place.
5. The Board sent another letter dated February 1, 2011 ("the February 2011 letter"), notifying Respondent that the Board had not received the names of any proposed practice monitors, that as of December 1, 2010; the 2010 Stipulation was being held in abeyance; that Respondent must cease practice; that Respondent could not practice without a

practice monitor in place; and requesting that Respondent submit a letter to the Board informing them that she was no longer practicing.

6. As of April 8, 2011, the Board had not received a response from Respondent to either the December 2010 letter or the February 2011 letter.

7. On April 8, 2011, the Board issued an Order of Summary Suspension pursuant to § 12-43-224(2)(c), C.R.S.

8. The last address furnished by Respondent to the Board is

9. The Notice of Duty to Answer, Notice to Set, Notice of Hearing, Notice of Grounds for Denial, and Option to Engage in Alternative Dispute Resolution (Notice of Duty to Answer) was served upon Respondent at her last address furnished on or about August 8, 2011 by first class mail, identifying the notice of the nature of the proceeding, the legal authority and jurisdiction under which it was held, and the matters of fact and law asserted.

10. The Notice of Duty to Answer alerted Respondent that failure to respond to the Notice of Duty to Answer could result in an entry of default decision, without further notice.

11. An Amended Notice of Duty to Answer, Notice to Set, Notice of Hearing, Notice of Charges and Option to Engage in Alternative Dispute Resolution ("Amended Notice of Charges") was filed on August 8, 2012.

12. The Amended Notice of Charges was mailed via first-class mail to the last address furnished to the Board by Respondent.

13. The Amended Notice of Charges alerted Respondent that failure to respond to the Amended Notice of Charges could result in an entry of default decision, without further notice.

14. A written answer to the Amended Notice of Charges has not been filed by the Respondent.

15. The Board's Motion for Entry of Default was mailed by first class mail to Respondent at the last address furnished on October 4, 2012.

16. The Administrative Law Judge's Entry of Default was mailed by first class mail to Respondent at the last address furnished on October 19, 2012. Respondent did not file a motion to set aside the Entry of Default.

17. Respondent is deemed to have admitted the allegations in the Notice of Charges, which are incorporated herein by reference.

18. The Initial Decision of the ALJ was rendered and received by the Board on or about December 11, 2012. A copy of the Initial Decision is attached to this Order. The Initial Decision is incorporated herein by reference.

19. The Initial Decision was served on Respondent and the Board's disciplinary counsel on January 4, 2014, via first-class and interoffice mail.

ANALYSIS

I. Procedural Review

13. C.R.S. § 24-4-105(2)(b) provides that if any respondent fails to answer an administrative notice within thirty days after service, the ALJ may enter a default. The ALJ acted in accordance with the statute.

14. C.R.S. § 24-4-105(15)(a) provides that a respondent seeking to reverse or modify an ALJ decision will have twenty days after service of an initial decision to file a designation of record. The Respondent never filed a designation of record.

15. C.R.S. § 24-4-105(14)(a)(II) provides that a respondent will have thirty days after service of an initial decision to file exceptions to an initial decision. The Respondent never filed exceptions. *Lanphier v. Department of Pub. Health & Env't*, 179 P.3d 148, 151-53 (Colo. App. 2007).

16. Although C.R.S. § 24-4-105(14)(b)(III) provides that if a respondent fails to file exceptions, the initial decision shall become the decision of the agency, the agency nonetheless initiated review of the initial decision on its own motion under C.R.S. § 24-4-105(14)(a)(II) by order dated January 4, 2013. Subsection (14) is not intended to limit the jurisdiction of an agency to review an initial decision outside of the thirty-day period so long as the agency's motion to review was timely made. *Cornell v. State Bd. Of Pharmacy*, 813 P.2d 771 (Colo. App. 1990).

CONCLUSION

17. Upon review of the Initial Decision Upon Default, and the Record, the Board hereby:

- a. Accepts Findings of Fact, Paragraphs 1 through 7.
- b. Adopts Conclusions of Law, Paragraphs 1-4.
- c. Adopts the recommended sanction in the last paragraph, specifically Respondent's license to practice as a professional counselor is revoked.

IT IS THEREFORE ORDERED by the Board that Respondent's license to practice professional counseling is revoked from the effective date of this Final Board Order. The Final Board Order is hereby effective upon signature.

SO ORDERED this 26th day of March, 2013.

FOR THE STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS

A handwritten signature in black ink, appearing to read 'Jacqueline Arcelin', written over a horizontal line.

Jacqueline Arcelin
Acting Program Director

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 633 17 th Street, Suite 1300 Denver, Colorado 80202		
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS, Petitioner, vs. MEGHAN PATRICK-COBB, LPC, License No. 3524, Respondent.		▲ COURT USE ONLY ▲ CASE NUMBER: PCE 2011-0002
INITIAL DECISION UPON DEFAULT		

This case is a proceeding before the State Board of Licensed Professional Counselor Examiners ("the Board") involving the license to practice as a professional counselor of Respondent Meghan Patrick-Cobb. The Board was represented by Robert W. Finke, Assistant Attorney General. Respondent did not appear in this proceeding. Based upon Respondent's failure to file a timely answer to the Board's First Amended Notice of Charges, an Entry of Default was issued on October 19, 2012. Respondent then had ten days to show good cause why the default should be set aside. Section 24-4-105(2)(b), C.R.S. (2012). No motion to set aside the default was filed, and this matter became ready for issuance of an initial decision upon default.

FINDINGS OF FACT

1. The last address furnished by Respondent to the Board is

2. Amended Notice of the nature of this proceeding, the legal authority and jurisdiction under which it was held and the matters of fact and law asserted was mailed by first class mail to Respondent at the above address on August 8, 2012.

3. The Amended Notice of Duty to Answer alerted Respondent that failure to respond to the Notice of Charges within 30 days could result in a default decision issued against Respondent's license to practice in the State of Colorado.

4. No written answer to the Amended Notice of Charges has been filed by Respondent.

5. The Board's Motion for Entry of Default was mailed by first class mail to Respondent at the above address on October 4, 2012.

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MENTAL HEALTH BOARD

6. The Administrative Law Judge's Entry of Default was mailed to Respondent by first class mail to the above address on October 19, 2012. The Respondent did not file a motion to set aside the Entry of Default.

7. Respondent is deemed to have admitted the allegations of the Amended Notice of Charges, which are incorporated herein as Findings of Fact.

CONCLUSIONS OF LAW

1. Respondent has received timely notice of the time, place and nature of this hearing; of all matters of fact and law asserted; and of all matters required by Section 24-4-105(2)(a), C.R.S. (2012), in the manner required by that section.

2. The Board has jurisdiction over Respondent and over Respondent's license as a professional counselor.

3. By virtue of Respondent's default the Board is entitled to the relief requested in the Amended Notice of Charges and Motion for Entry of Default. See Section 24-4-105(2)(b), C.R.S. (2012).

4. The deemed allegations constitute violations of law as set out in the Amended Notice of Charges.

INITIAL DECISION

When the Board has proven that a licensee has violated the license law, it may impose discipline in the form of a suspension or revocation of the license, or it may place the licensee on probation. Section 12-43-212, C.R.S. (2012). The Board seeks revocation of the Respondent's license to practice as a professional counselor. The Respondent did not appear in this matter to present any mitigating factors. There is no information before the Administrative Law Judge indicating that some sanction other than revocation of the Respondent's license to practice as a professional counselor is appropriate in this case. The Respondent's failure to appear demonstrates a lack of interest in maintaining her Colorado licensure. It is therefore the Initial Decision of the Administrative Law Judge that Respondent's license to practice as a professional counselor is revoked.

DONE AND SIGNED

December 11, 2012



MICHELLE A. NORCROSS
Administrative Law Judge

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 633 17 TH Street, 14 TH Floor, Denver, Colorado 80202	FILED COPY 12 AUG -8 PM 3:03 OFFICE OF ADMINSTRATIVE COURTS ▲ COURT USE ONLY ▲
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS, Petitioner, vs. MEGHAN PATRICK-COBB, LPC, LICENSE NO. 3524, Respondent.	CASE NUMBER: PCE2011-0002
FIRST AMENDED NOTICE OF DUTY TO ANSWER, NOTICE TO SET, NOTICE OF HEARING, AND NOTICE OF CHARGES	

TO: MEGHAN PATRICK-COBB, LPC

AMENDED NOTICE OF DUTY TO ANSWER

YOU ARE HEREBY NOTIFIED that, pursuant to §24-4-105(2)(b), C.R.S., you are required to file a written answer to the attached First Amended Notice of Charges with the Office of Administrative Courts ("OAC"), 633 17th Street, 13th Floor, Denver, Colorado 80202, within 30 days after the mailing date of this First Amended Notice of Duty to Answer, Notice to Set, Notice of Hearing, and Notice of Charges (collectively referred to as "Amended Notice of Charges"). You must also mail a copy of such answer to the attorney for the State Board of Licensed Professional Counselor Examiners ("Board"), who signed this Amended Notice of Charges.

If you fail to file your written answer within 30 days, an order entering a default decision may be issued for the relief requested in the Notice of Charges, or for such other penalties as may be provided for by law, without further notice.

AMENDED NOTICE TO SET

YOU ARE HEREBY NOTIFIED that the attorney or a representative for the Board will appear in person or by telephone at 1:30 p.m. on **Friday, September 28, 2012**, at OAC, 633 17th Street, 13th floor, Denver, Colorado 80202, in order to set a date and obtain a location for a hearing regarding the following Amended Notice of Hearing and Amended Notice of Charges. You may be present in person or by counsel, or you may make prior arrangements to be reached by telephone at the time and date specified above by contacting the setting clerk prior to the day of setting at (303) 866-5797. In the event you

do not appear, a date will be obtained and you will be notified in writing of the hearing date, time, and place.

YOU ARE HEREBY NOTIFIED that you have the right to an expedited hearing on this matter and the option to request a prehearing conference before an administrative law judge. Any request for a prehearing conference must be made in writing to OAC, 633 Seventeenth Street, Suite 1300, Denver, Colorado 80202.

AMENDED NOTICE OF HEARING

YOU ARE HEREBY NOTIFIED that pursuant to §§12-43-221, 223, and 224; and 24-4-104 and 105, C.R.S., a hearing will be held before an authorized Administrative Law Judge at a time and location to be determined pursuant to the attached Amended Notice to Set for the purpose of determining whether Meghan Patrick-Cobb should be disciplined for violations of § 12-43-222(1)(b), C.R.S. (Rev. 2010) and § 12-43-222(1)(b), C.R.S., which provide as follows:

12-43-222 (Rev. 2010). Prohibited activities – related provisions. (1) A person licensed, registered, or regulated under part 3, 4, 5, 6, or 7 of this article is in violation of this article if such person:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article or rule promulgated pursuant to this article or any order of a board established pursuant to this article.

12-43-222. Prohibited activities – related provisions. (1) A person licensed, registered, or certified under this article violates this article if the person:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article or rule promulgated pursuant to this article or any order of a board established pursuant to this article.

YOU ARE FURTHER NOTIFIED that at the hearing in this matter, you shall have the right to appear in person and/or by legal counsel, to present evidence in your own behalf, to cross examine any witnesses presented by the Board, and to rebut any

evidence presented by the Board. You may also have subpoenas issued on your behalf in compliance with OAC General Services Rules of Procedure Rule 18.

NOTICE OF CHARGES

1. Meghan Lynn Patrick-Cobb ("Respondent") was licensed to practice as a professional counselor (LPC) in the State of Colorado on July 31, 2003, and has been licensed as a professional counselor at all times relevant to this matter. Respondent holds license number 3524.

2. The Board has jurisdiction over Respondent and the subject matter of this action.

3. On or about June 15, 2010, Respondent entered into a Stipulation and Final Agency Order with the Board ("the 2010 Stipulation") in which Respondent admitted she failed to document client contact and engaged in substandard care.

4. Under the terms of the 2010 Stipulation, Respondent agreed to two (2) years probation with the following terms:

a. Practice monitoring during the term of probation;

b. Within thirty (30) days of the effective date of the 2010 Stipulation, (that is, by July 15, 2010, as the effective date was June 15, 2010), Respondent shall submit the names of three (3) proposed practice monitors for the Board's approval.

c. The practice monitor must be approved within two (2) months of the effective date of the 2010 Stipulation (that is, by August 15, 2010).

d. If a practice monitor is not approved within two (2) months, Respondent shall cease practice until a practice monitor is approved.

5. As of December 1, 2010, Respondent had not submitted the names of any proposed practice monitors to the Board for its approval.

6. The Board sent a letter dated December 1, 2010 to Respondent ("the December 2010 letter"), notifying Respondent that the Board had not received the names of any proposed practice monitors from Respondent.

7. The December 2010 letter also notified Respondent that, as of December 1, 2010, the 2010 stipulation was being held in abeyance, that Respondent must cease practice, and that Respondent could not practice without a practice monitor in place.

8. The December 2010 letter requested that Respondent submit a letter to the Board informing them that she was no longer practicing.

9. The Board did not receive a response from Respondent to the December 2010 letter.

10. Since the Board did not receive a response from Respondent to the December 2010 letter, the Board sent Respondent a second letter on February 1, 2011 ("the February 2011 letter"), notifying Respondent that the Board had not received the names of any proposed practice monitors from Respondent; that as of December 1, 2010, the 2010 stipulation was being held in abeyance; that Respondent must cease practice; that Respondent could not practice without a practice monitor in place; and requesting that Respondent submit a letter to the Board informing them that she was no longer practicing.

11. As of April 8, 2011, the Board had not received a response from Respondent to either the December 2010 letter or the February 2011 letter.

12. Pursuant to § 12-43-224(2)(c), C.R.S., the Board is empowered to summarily suspend Respondent's license to practice as a professional counselor in the State of Colorado in the case of a deliberate and willful violation.

13. Based upon the facts stated in paragraphs three (3) through ten (10) above, at its regularly-scheduled Board meeting on March 18, 2011, the Board determined that it had objective and reasonable grounds to believe Respondent had deliberately and willfully violated the terms of the 2010 Stipulation, and therefore it was imperative that emergency action be taken to prevent Respondent from practicing professional counseling and/or psychotherapy in the State of Colorado.

14. On or about April 8, 2011, the Board issued an Order summarily suspending Respondent's license to practice professional counseling in the State of Colorado. A copy of the Board's Order is attached as **Exhibit 1**.

15. The Board filed its first Notice of Duty to Answer, Notice to Set, Notice of Hearing, Notice of Charges, and Option to Engage in Alternative Dispute Resolution, with attached Order of Summary Suspension, on April 11, 2011 ("original notice of charges").

16. On or about July 11, 2011, after the original Notice of Charges was filed, the Board received another complaint against Respondent.

17. Upon investigation of the new complaint, the Board determined that Respondent provided professional counseling services to client C.O., a person known to Respondent, until mid-2011, despite being directed to cease practicing professional counseling pursuant to the terms of the 2010 Stipulation, despite having been summarily suspended by the Board, and in violation of the 2010 Stipulation and the summary suspension order.

COUNT I
Violation of a Board Order (2010 Stipulation)

18. Paragraphs 1 through 17 are hereby incorporated by this reference.

19. The above-described conduct demonstrates that Respondent has deliberately and willfully violated the 2010 Stipulation, a violation of § 12-43-222(1)(b), C.R.S.

20. Respondent's violation of § 12-43-222(1)(b), C.R.S., subjects Respondent to discipline of her license pursuant to § 12-43-224(1)(a), C.R.S.

COUNT II
Violation of a Board Order (Summary Suspension Order)

21. Paragraphs 1 through 20 are hereby incorporated by this reference.

22. The above-described conduct demonstrates that Respondent has deliberately and willfully violated the Order of Summary Suspension dated April 8, 2011, a violation of § 12-43-222(1)(b), C.R.S.

23. Respondent's violation of § 12-43-222(1)(b), C.R.S., subjects Respondent to discipline of her license pursuant to § 12-43-224(1)(a), C.R.S.

WHEREFORE, the Board requests entry of an order suspending, revoking, or otherwise appropriately disciplining Respondent's license to practice as a professional counselor, and for such other relief as deemed proper and just.

Respectfully submitted this 8th day of August, 2012.

JOHN W. SUTHERS
Attorney General



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